

25NNCV06903 25NNCV06903

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-08-05

Motion: PLAINTIFF GANG YANG'S MOTIONS TO COMPEL RESPONSES AND DEEM ADMITTED; REQUEST FOR MONETARY SANCTIONS

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Case Number: 25NNCV06903 Hearing Date: August 5, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST DISTRICT

GANG YANG,

Plaintiff(s),

vs.

ANNE CHUI, et al.,

Defendant(s).

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CASE NO.: 25NNCV06903

[TENTATIVE] ORDER RE: PLAINTIFF GANG YANG'S MOTIONS TO COMPEL RESPONSES AND DEEM ADMITTED;
REQUEST FOR MONETARY SANCTIONS

Dept. 3

8:30 a.m.

August 5, 2026

On September 30, 2025, plaintiff Gang Yang ("Plaintiff") filed this action against defendants Anne Chui, Rogers Chui, A&R Trust, and A1 Meat, Inc. (collectively, "Defendants"). Now, Plaintiff moves for twelve orders compelling Defendants' responses to written discovery and deeming admitted the truth of the matters specified in requests for admission. The underlying written discovery was served on April 16, 2026, but no responses have been received.

Compel Responses

Where a party fails to serve timely responses to discovery requests, the court may make an order compelling responses. (Code Civ. Proc., §§ 2030.290, 2031.300.) A party that fails to serve timely responses waives any objections to the request, including ones based on privilege or the protection of attorney work product. (Code Civ. Proc., §§ 2030.290, subd. (a), 2031.300, subd. (a).)

Defendants did not oppose Plaintiff's motions and it is undisputed responses were not served. Plaintiff's motions are GRANTED as follows:

- Anne Chui is ordered to serve verified responses to Form Interrogatories (Set One), Special Interrogatories (Set One), and Request for Production of Documents (Set One), without objections, within 20 days of the date of this order.
- Rogers Chui is ordered to serve verified responses to Form Interrogatories (Set One), Special Interrogatories (Set One), and Request for Production of Documents (Set One), without objections, within 20 days of the date of this order.
- A&R Trust is ordered to serve verified responses to Request for Production of Documents (Set One) and Form Interrogatories (Set One), without objections, within 20 days of the date of this order.

- A1 Meat, Inc. is ordered to serve verified responses to Requests for Production of Documents, Set One and Form Interrogatories (Set One), without objections, within 20 days of the date of this order.

Deem Admitted

Where a party fails to timely respond to a request for admission, the propounding party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted. (Code Civ. Proc., § 2033.280, subd. (b).) The party who failed to respond waives any objections to the demand, unless the court grants them relief from the waiver, upon a showing that the party (1) has subsequently served a substantially compliant response, and (2) that the party's failure to respond was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc., § 2033.280, subds. (a)(1)-(2).)

The court shall grant a motion to deem admitted requests for admissions, "unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." (Code Civ. Proc., § 2033.280, subd. (c).)

Anne Chui and Rogers Chui did not oppose Plaintiff's motions and it does not appear that substantially-compliant responses have been served before the hearing. Accordingly, the motions to deem admitted are GRANTED:

Monetary Sanctions

The Code of Civil Procedure provides that the court shall impose a monetary sanction against the party who unsuccessfully makes or opposes a motion to compel, unless the party acted with substantial justification or the sanction would otherwise be unjust. (Code Civ. Proc., § 2030.290, subd. (c), 2031.300, subd. (c).) Where a party fails to provide a timely response to requests for admission, "[i]t is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion." (Code of Civ. Proc., § 2033.280, subd. (c).)

Plaintiff's request for monetary sanctions is GRANTED. Sanctions are imposed as follows:

(1) On Anne Chui and counsel of record, jointly and severally, in the reduced amount of \$1,948.80, consisting of \$1,660 in attorneys' fees (4 hours at Plaintiff's counsel's hourly rate of \$415) and \$288.80 in filing fees, payable within 20 days of the date of this Order.

(2) Rogers Chui and counsel of record, jointly and severally, in the reduced amount of \$1,948.80, consisting of \$1,660 in attorneys' fees (4 hours at Plaintiff's counsel's hourly rate of \$415) and \$288.80 in filing fees, payable within 20 days of the date of this Order.

(3) A&R Trust and counsel of record, jointly and severally, in the reduced amount of \$974.4, consisting of \$830 in attorneys' fees (2 hours at Plaintiff's counsel's hourly rate of \$415) and \$144.40 in filing fees, payable within 20 days of the date of this Order.

(4) A1 Meat, Inc. and counsel of record, jointly and severally, in the reduced amount of \$974.4, consisting of \$830 in attorneys' fees (2 hours at Plaintiff's counsel's hourly rate of \$415) and \$144.40 in filing fees, payable within 20 days of the date of this Order.

Plaintiff to give notice.

Dated this 5th day of August 2026

William A. Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.

SUPERIOR COURT OF THE STATE OF

CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST

DISTRICT

GANG YANG,

Plaintiff(s),

vs.

ANNE

CHUI, et al.,

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CASE NO.: 25NNCV06903

[TENTATIVE]

ORDER RE: PLAINTIFF'S APPLICATIONS FOR WRIT OF ATTACHMENT

Dept.

3

8:30

a.m.

August

5, 2026

Plaintiff Gang Yang

("Plaintiff") seeks writs of attachment against Defendants Anne Chui, Rogers

Chui, A&R Trust and A1 Meat Inc. ("A1 Meat") (collectively, "Defendants")

in the amount of \$500,000. On August 3, 2026, Defendants filed notices of opposition and claims of exemption, as well as a memorandum of point and authorities and joint declaration of Anne Chui and Rogers Chui. No reply brief has been filed.

Plaintiff alleges claims

for breach of contract arising from a written settlement agreement entered into on February 22, 2024 ("2024 Agreement"). The 2024 Agreement required Defendants to provide "application materials and supplementary materials for the application of removing conditions" on Plaintiff's conditional green card following Plaintiff's \$500,000 investment in A1 Meat as part of a visa application. Plaintiff alleges he cannot remove the conditions on his green card due to Defendants' actions and, as a result, he has suffered damages "in the sum of \$500,000 plus consequential damages according to proof." (Compl., ¶ 33.)

"Upon the filing of the complaint or at any time thereafter, the plaintiff may apply pursuant to this article for a right to attach order and a writ of attachment by filing an application for the order and writ with the court in which the action is brought." (CCP § 484.010.) The application shall be executed under oath and must include:

a statement showing that the attachment is sought to secure the recovery on a claim upon which an attachment may be issued;

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a statement of the amount to be secured by the attachment;

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a statement that the attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based;

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a statement that the applicant has no information or belief that the claim is discharged or that the prosecution of the action is stayed in a proceeding under the Bankruptcy Act (11 U.S.C. section 101 et seq.); and

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a description of the property to be attached under the writ of attachment and a statement that the plaintiff is informed and believes that such property is subject to attachment.

(CCP § 484.020.)

Plaintiff argues that his

breach of contract claim entitles him to a writ of attachment as his damages of

\$500,000 are fixed and readily ascertainable from Defendants' refusal to

cooperate with his EB-5 visa application.

Defendants oppose

Plaintiff's applications on the grounds that the claimed damages of \$500,000 is incorrect and that damages are uncertain due to the parties' agreement in 2024, which allocated responsibility for payroll taxes, labor insurance premiums, and management fees to Plaintiff, depending on the requirements of Plaintiff's visa application. However, the 2024 Agreement accounts for different scenarios in which Plaintiff would be responsible for certain expenses depending on when his visa application was approved; since Plaintiff alleges that his green card has not been approved, those scenarios are irrelevant and damages are not uncertain.

Next, Defendants argue that

Plaintiff cannot prove a breach of contract. Defendants claim they complied with their obligations under the 2024 Agreement because Plaintiff has not been in communication with them and that it is unknown why the conditions on his green card were not removed. Defendants point to another party to the 2024 Agreement, Junhui Li, who, like Plaintiff, invested in A1 Meat and was successfully able to remove the conditions on his green card. Defendants emphasize that Li and Plaintiff used the same immigration attorney. (Opp., p. 2.) Defendants assert that Plaintiff likely abandoned his petition for a visa because of issues proving that his funds were legitimate and that their conduct is not to

blame for the Plaintiff's unsuccessful visa application. (Opp., pp. 2-3; Chui

Joint Decl., ¶ 16.)

Plaintiff did not file a

reply brief and address Defendants' arguments regarding his ability to prove

that any purported breach of contract caused his damages. Accordingly, the

applications for writ of attachment are DENIED.

Plaintiff to give notice.

Dated

this 5th

day of August 2026

William A. Crowfoot

Judge of the Superior Court

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might appear at the hearing to argue. If the Court does not receive emails from

the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.